

Procedure section 2023.010(d).

The Court finds that all of the foregoing conduct by Defendant constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and in unsuccessfully opposing this motion, the Court finds that Defendant did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of the sanction unjust.

Defendant shall pay monetary sanctions to Plaintiff in the amount of **\$3,960.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by Plaintiff as a result of the foregoing conduct by Defendant. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is GRANTED.
2. Defendant shall serve verified further amended responses to the Discovery Requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Monetary Sanctions shall be paid by Defendant to Plaintiff within **thirty (30) calendar days** of notice of entry of this order.
4. The Court shall issue the order after hearing.

6. 9:00 AM CASE NUMBER: C25-00973
CASE NAME: JOHN HURTADO VS. WOODBURY LAFAYETTE COMMUNITY ASSOCIATION,
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: WOODBURY LAFAYETTE COMMUNITY ASSOCIATION,
TENTATIVE RULING:

Defendants Woodbury Lafayette Community Association and Sharon Collins, Inc. (“Defendants”) filed a Demurrer on December 15, 2025 to the Second Amended Complaint filed by plaintiffs November 12, 2025 (the “Demurrer”). The Demurrer was set for hearing on May 4, 2026.

Background

Defendants’ Demurrer contends that the third, fourth, fifth, sixth, seventh, eighth and ninth causes of action fail to state facts sufficient to constitute causes of action. Defendants also demur to the first, second and ninth causes of action on the grounds that Plaintiffs lack standing. Defendants also demur to various of the causes of action on other grounds, including being barred by the statute of limitations and being duplicative.

Analysis

The Demurrer is unopposed.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is DENIED.
3. Moving party to submit a revised proposed form of order.

7. 9:00 AM CASE NUMBER: C25-01457
CASE NAME: ADELE HARRISON VS. ALAMEDA-CONTRA COSTA TRANSIT DISTRICT,
***HEARING ON MOTION IN RE: SEEK MANDATORY RELIEF FROM THE COURT'S ORDER GRANTING**
DEFENDANT'S DEMURRER
FILED BY: HARRISON, ADELE
TENTATIVE RULING:

Introduction

Before the Court is Defendant's Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's ("AC Transit" or "Defendant") demurrer without leave to amend, pursuant to Code of Civil Procedure section 473(b), on grounds of attorney mistake and neglect based on Plaintiff's counsel's mis-calendaring of the Government Code section 945.6(a)(1) filing deadline, which led to the late filing of the Plaintiff's complaint and the Court's subsequent order sustaining the Defendant's demurrer. The motion seeks to vacate the order sustaining the demurrer and to permit the action to proceed on the merits.

For the reasons stated below, **the Motion to for relief from the Court's order sustaining Defendant Alameda-Contra Costa Transit District's ("AC Transit") Demurrer without leave to amend is DENIED.**

Procedural Background

<u>Date</u>	<u>Event</u>
May 22, 2024	Subject Incident
June 11, 2024	Plaintiff presents Claim for Damages to Defendant AC Transit.
June 21, 2024	Defendant AC Transit Sends Plaintiff Notice of Insufficient Claim
July 1, 2024	Plaintiff presents an Amended Claim for Damages to Defendant AC Transit.
July 17, 2024	Defendant AC Transit rejects Plaintiff's Claim for Damages and notifies Plaintiff that she has six months to file a court action or